

25SMCV01302 25SMCV01302

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-09

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Source SHA-256: 48db63c200f2a2f2b313d8798b1b05cc155b77b71964353d93b867f264a7520d

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TENTATIVE RULING

July 9, 2026

25SMCV01302 (Cox v. Quality Stables LLC)

RELEVANT BACKGROUND

On

March 12, 2025, plaintiff Austin Cox (Plaintiff) filed the Complaint against defendant Quality Stables, LLC dba Los Angeles Horseback Riding (Defendant), alleging two causes of action for (1) gross negligence and (2) willful misconduct.

In

his complaint, Plaintiff alleges that he was injured on July 21, 2023 while renting a horse from Defendant because the saddle was allegedly not fastened correctly by Defendant's employee. The saddle rotated to the left and Plaintiff fell to the ground. Plaintiff was airlifted to a hospital as a result of his injuries, including a traumatic brain injury.

Plaintiff

filed various Proofs of Service of the summons and complaint on 4/2/25, 6/9/25, 6/12/25, 4/20/26.

On

January 21, 2026, Plaintiff's request for entry of default was entered.

On

April 27, 2026, Defendant's motion to set aside/vacate the default was denied.

INSTANT MOTION

On May 22, 2026, Defendant filed the instant demurrer to the first and second causes of action alleged in the complaint. Plaintiff filed an opposition, and Defendant filed a reply.

DISCUSSION

A. Defendant's Lack of Representation as a Corporation

"[A] corporation cannot represent itself in a court of record either in propria persona or through an officer or agent who is not an attorney." (*Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.* (2002) 99 Cal.App.4th 1094, 1101; see also, e.g., *Prato v. Gioia* (2025) 112 Cal.App.5th 651, fn. 2 [rule applies to limited liability companies].) "A corporation has the capacity to bring a lawsuit because it has all the powers of a natural person in carrying out its business. [Citation.] However, under a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record." (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1149, citing *Caressa Camille, supra*, and *Corp. Code, §§ 105, 207*.) The failure of a corporation to be represented by counsel is a defect, but it may be corrected. (*Ibid.*)

The

Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (*Code Civ. Proc. § 436, subd. (a).*) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (*Id. at § 436, subd. (b).*)

Here,

Defendant is a corporation and is not represented by counsel. The instant demurrer was filed by Defendant's owner, Carmen R. Cornielle, who is not an

attorney. (See Demurrer at p. 1; Cornielle Decl.) Since a corporation may not represent itself, the instant motion is an improper filing that must be stricken.

Accordingly,

on the Court's own motion, Defendant's demurrer is STRICKEN as improper on the basis that Defendant is a corporation not represented by counsel. The Court further orders that an OSC regarding representation of Defendant is set for August 25, 2026, at 8:30 a.m..

B. Defendant's Default and Standing to Bring the Instant Demurrer

Additionally, the Court notes that, even if Defendant's demurrer had not been stricken as improper, the Court would have been inclined to overrule the demurrer on procedural grounds because Defendant is in default and therefore lacks standing. In addition to obtaining representation, Defendant would need to file a new motion to set aside/vacate the default with adequate support before proceeding.

"A defendant against whom a default is entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action." (Christerson v. French (1919) 180 Cal. 523, 525; see also Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385; Forbes v. Cameron Petroleum, Inc. (1978) 83 Cal.App.3d 257, 262 ["It is clear that defendants' demurrer was a legal nullity when it was filed. Since defendants' default had already been entered, they had no standing to file any responsive pleading without first obtaining relief from the default"]; and Siry Investment, L.P. v. Farkhondehpour (2022) 13 Cal.5th 333, 343 ["[A] party who is in default is barred from further participation in the proceedings."].)

Plaintiff correctly argues

in opposition that Defendant lacks standing to bring the instant motion and the Court lacks jurisdiction due to the clerk's entry of default, citing Code of Civil Procedure sections 473(b) and 430.30, and Forbes v. Cameron Petroleum, Inc. (1978) 83 Cal.App.3d 257.

In reply, Defendant argues

that it has standing to bring the instant demurrer because Plaintiff elected to re-serve Defendant on April 20, 2026. Defendant contends that the default

entered without valid service is void. But Defendant fails to adequately address the fact that the default has not been set aside, and Defendant does not provide any authority in support of the contention that a demurrer can be brought by a defendant in default before the default is set aside. Nor does Defendant explain why it has not brought a new motion to set aside the default given that the previous motion to set aside was denied without prejudice on April 27, 2026.